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Case Number: 25NWCV04168 Hearing Date: July 14, 2026 Dept: SED

DAVID FERRER V.

LESLIE DENISE TIRADO, ET AL.

CASE NO.: 25NWCV04168

HEARING: 07/14/2026 @

9:30 a.m.

#13

TENTATIVE ORDER

Defendant Roxana Hernandez's

Anti-SLAPP motion to strike is GRANTED.

Moving party to give notice.

Defendant Roxana Hernandez (Defendant)

specially moves, pursuant to Code of Civil Procedure section 425.16 to strike

Plaintiff David Ferrer's (Plaintiff) Complaint.

Defendant also requests that the Court award her attorneys' fees and

costs incurred in bringing this motion.

Background

On November 24, 2025, Plaintiff

filed the operative Complaint against Defendants Leslie Denise Tirado, Leonardo

Gerardo Rosas Bucio, and Roxana Hernandez, asserting four causes of action: (1)

Defamation (per se) and (2) Intentional Infliction of Emotional Distress; (3) Negligent Infliction of Emotional Distress; and (4) Civil Conspiracy.

Plaintiff alleges that Defendants made knowingly false and defamatory statements during a Downey Unified School District investigation into allegations of professional misconduct against Plaintiff, a Deaf and Hard of Hearing teacher. Plaintiff contends the statements were incorporated into the District's investigative records and subsequently republished in credential investigations, public records, and employment-related background inquiries, causing ongoing damage to his professional reputation, career, and emotional well-being.

On January 28, 2026, Defendant filed the instant motion.

On June 22, 2026, Plaintiff filed an opposition.

On July 7, 2026, Defendant filed a reply.

Legal Standard

On a special motion to strike pursuant to Code of Civil Procedure section 425.16, also known as an Anti-SLAPP motion, moving parties have the initial burden to demonstrate that a cause of action is subject to a special motion to strike. (*Martinez v. Metabolife Inter. Ins.* (2003) 113 Cal.App.4th 181, 186; *Fox Searchlight Pictures Inc. v. Paladino* (2001) 89 Cal.App.4th 294, 304.) First, the court must determine whether moving parties have made a prima facie showing that the attacked claims arise from a protected activity, including defendants' right of petition, or free speech, under a constitution, in connection with issues of public interest. (*Healy v. Tuscany Hills Landscape & Recreation Corp.*, (2006) 137 Cal.App.4th 1, 5; *Soukup v. Law Offices of Herbert Hafif* (2006) 39 Cal.4th 260, 278; Code Civ. Proc., §425.16, subd. (e).) Moving parties can satisfy this burden by showing (1) statements made before legislative, executive or judicial proceedings, or made in connection with matters being considered in such proceedings, or (2) statements made in a public forum, or other conduct in furtherance of the exercise of the

constitutional rights of petition or free speech, in connection with issues of public interest. (Code Civ. Proc., § 425.16, subd. (e); *Equilon Ent., LLC v. Consumer Cause, Inc.* (2002) 29 Cal.4th 53, 66.)

If the court finds this showing has been made, it must dismiss the cause of action unless the plaintiff meets its burden to demonstrate a probability of prevailing on the claim. (Code Civ. Proc., § 425.16, subd. (b)(1); see also *Balzaga v. Fox News Network, LLC* (2009) 173 Cal.App.4th 1325, 1336.) The plaintiff is required to present admissible evidence that, if credited, would be sufficient to sustain a favorable judgment. (*Navallier v. Sletten* (2002) 29 Cal.4th 82, 89.) The court “accept[s] as true the evidence favorable to the plaintiff and evaluate[s] the defendant’s evidence only to determine if it has defeated that submitted by the plaintiff as a matter of law. [Citation.]” (*Barry v. State Bar of California* (2017) 2 Cal.5th 318, 321.);

Analysis

Defendant contends that the Complaint is subject to a special motion to strike under Code of Civil Procedure section 425.16 because it is wholly based on protected activity—namely, oral statements made during, and in connection with, an official proceeding authorized by law. (Code Civ. Proc., § 425.16, subds. (e)(1), (e)(2).)

First Prong: Protected Activity

To prevail on a motion to strike a SLAPP, the moving party must first make “‘a threshold showing that the challenged cause of action’ arises from an act in furtherance of the right of petition or free speech in connection with a public issue.” (*Varian Medical Systems, Inc. v. Delfino* (2005) 35 Cal.4th 180, 192.) To determine whether a lawsuit “arises from” protected activity, a court considers the pleadings and affidavits recounting the facts creating the alleged liability. (*Navellier v. Sletten* (2002) 29 Cal.4th 82, 89.)

Here, Defendant has met her

burden under the first prong. The challenged claims arise from statements Defendant allegedly made during interviews conducted by Downey Unified School District on September 18, 2023, as part of the District's investigation into allegations of misconduct against Plaintiff. (Complaint ¶ 13.) Plaintiff likewise acknowledges that "Defendant's September 18, 2023 statements were made during a District interview process." (Opp., p. 4.)

Code of Civil Procedure section 425.16(e)(1) protects "any written or oral statement or writing made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law." Statements made during or in connection with an official proceeding authorized by law constitute protected activity within the meaning of section 425.16. (Code Civ. Proc., § 425.16, subd. (e)(1), (2).)

Plaintiff's contention that the District investigation was procedurally flawed or lacked neutrality does not alter the analysis. (Opp., p. 5.) The relevant inquiry under the first prong is whether the challenged claims arise from statements made during or in connection with an official proceeding, not whether the proceeding was ultimately conducted properly.

The burden now shifts to Plaintiff to show that it has a probability of success on the claims at issue.

Likelihood
of Success on the Merits

The crux of the instant motion is whether Plaintiff can satisfy his burden on the second prong.

For the second prong of the anti-SLAPP analysis, Plaintiff bears the burden of establishing a probability of succeeding on the merits. (See Kyle v. Carmon (1999) 71 Cal.App.4th 901, 907.) However, Plaintiff is "not required 'to prove the specified claim to the trial court;' rather, so as to not deprive the plaintiff of a jury trial, the appropriate inquiry is whether the plaintiff has stated and substantiated a legally sufficient claim." (Whitehall

v. County of San Bernardino (2017) 17 Cal.App.5th 352, 364.) "Put another way, the plaintiff must demonstrate that the complaint is both legally sufficient and supported by a sufficient prima facie showing of facts to sustain a favorable judgment if the evidence submitted by the plaintiff is credited." [Citation.] (Navellier v. Sletten (2002) 29 Cal. 4th 82, 88–89.)

"In opposing an anti-SLAPP

motion, the plaintiff cannot rely on the allegations of the complaint, but must produce evidence that would be admissible at trial. [Citation.]

Thus, declarations may not be based upon 'information and belief'

[Citation] and documents submitted without the proper foundation will not be considered." (HMS Capital, Inc. v.

Lawyers Title Co. (2004) 118 Cal.App.4th 204, 212 (HMS).) The complaint, even if verified, is insufficient to carry the plaintiff's shifted burden. (Roberts v. Los Angeles County Bar Association (2003) 105 Cal.App.4th 604, 614; Karnazes v. Ares (2016) 244 Cal.App.4th 344, 354 ["pleadings do not constitute evidence"].)

"The court considers the

pleadings and evidence submitted by both sides, but does not weigh credibility

or compare the weight of the evidence. Rather,

the court's responsibility is to accept as true the evidence favorable to the

plaintiff [citation] and evaluate the defendant's evidence only to determine if

it has defeated that submitted by the plaintiff as a matter of law. [Citation.] The trial court merely determines whether a prima facie showing has been made that would warrant the claim going forward." (HMS, supra, 118 Cal.App.4th at 212.)

First

Cause of Action: Defamation Per Se

a)

Statute of Limitations

First, Defendant argues that

Plaintiff's first cause of action for defamation is barred by the applicable statute of limitations.

An action for libel or slander

must be brought within one year. (Code

Civ. Proc., § 340, subd. (c).) "In

California the accrual of causes of action growing out of the publication of

defamatory or other tortious statements is governed by the single-publication rule. Under the rule, one cause of action will arise, and the statute of limitations will commence running, upon the first general publication or broadcast of a tortious statement, notwithstanding how many copies of the publication are distributed or how many people hear or see the broadcast. Any subsequent republication or rebroadcast gives rise to a new single cause of action.” (Traditional Cat Assn., Inc. v. Gilbreath (2004) 118 Cal.App.4th 392, 395.) The single publication rule applies to statements posted on websites. (Ibid.)

Defendant argues that Plaintiff’s allegations were made against Defendant in September 2023, and that Plaintiff does not allege that she made any statements or engaged in any misconduct after September 18, 2023. (Motion p. 14.) Further, Defendant argues that Plaintiff was aware of Defendant’s allegedly defamatory statements by no later than November 4, 2023, the date he sent a letter to Defendant’s mother. (Ibid.)

In opposition, Plaintiff argues that Defendant’s argument fails because he has evidence that the defamatory statements were “later incorporated into official records and transmitted to new audiences in credential-related, records-related and employment-related contexts.” (Opp., p. 12.) As evidence, Plaintiff argues that the October 24, 2025 Notice of Committee Recommendation issued by the California Commission on Teacher Credentialing (Commission) expressly relies upon and repeats the same allegations, including statements attributed to Defendant. (Ferrer Decl., ¶ 24, Ex. D.) Plaintiff contends that the District’s transmission of its findings of the investigation to the Commission confirms that that defamatory statements were carried forward into subsequent proceedings and communicated to new audiences beyond the initial interview. (Opp., p. 12.)

In her reply, Defendant argues that Plaintiff’s reliance on *Shively v. Bozanich* (2003) 31 Cal.4th 1230 (*Shively*) fails because, (1) under the republications rule, Plaintiff has not shown that Defendant reasonably expected that there would be any repetition of the statements she made in September 2023, (2) Plaintiff cannot argue that he was unaware of Defendant’s statements until he received the Commission’s October 2025 notice, and (3) the proceedings before the Commission are privileged. (Reply pp. 9-10.)

In *Shively*, the California

Supreme Court reaffirmed that each publication of a defamatory statement

ordinarily gives rise to a separate cause of action for defamation. (*Shively*, *supra*, 31 Cal.4th at 1242.) The Court explained that this rule applies

when the original defamer repeats or recirculates the defamatory statement to a

new audience, as well as when another person repeats the defamatory statement. (*Id.* at 1242–1243.) In the latter circumstance, the original

defamer may also be liable for the subsequent republication where the repetition was reasonably foreseeable. (*Id.*

at 1243; see *Mitchell v. Superior Ct.* (1984) 37 Cal.3d 268 [holding that

the republication rule turns on foreseeability, not exact reproduction, and

that if a plaintiff can show a sufficient causal link between the original

defamer and the republication, the originator may be held responsible].) The Court also recognized that the discovery

rule may toll the limitations period where a defamatory statement is hidden

from view—for example, in a personnel file that the plaintiff cannot

inspect. (*Id.* at 1249; see *Manguso*

v. Oceanside Unified School District (1979) 88 Cal.App.3d 725 [finding that

a teacher's cause of action for libel against a school principal did not accrue

until the teacher knew or had reasonable cause to learn of the libelous

material the principal had placed in her personnel file].)

Here, Plaintiff has made a

sufficient showing, that the defamation claim is not barred by the statute of limitations. Plaintiff alleges that

Defendant's statements were later incorporated into the District's

investigative findings and subsequently transmitted to the Commission,

culminating in the Commission's October 24, 2025 Notice of Committee

Recommendation, which allegedly repeated the same defamatory accusations to a

new audience. Under *Shively*, a

republication may give rise to a new cause of action where the original

defamatory statement is repeated to a new audience and the repetition was

reasonably foreseeable. (*Shively*,

supra, 31 Cal.4th at 1242–1243.) Plaintiff has presented evidence that the

District transmitted the investigative findings to the Commission as part of

the credentialing process, and at this stage the Court cannot conclude, as a

matter of law, that such subsequent communications could not constitute a

foreseeable republication sufficient to support a timely defamation claim.

Accordingly, Defendant has not

established that the defamation claim is barred by the statute of limitations.

b)

Civil Code Section 47

Next, Defendant argues that

Plaintiff's claims fail because they are barred by the privileges set forth in

Civil Code section 47. Specifically,

Defendant contends that her statements to school officials are absolutely

privileged under both the litigation privilege and the common interest

privilege. (Civ. Code, § 47, subs. (b),

(c).)

Civil Code section 47,

subdivision (b) provides that a privileged publication or broadcast is one made

in (1) a legislative proceeding, (2) a judicial proceeding, (3) any other

official proceeding authorized by law, or (4) the initiation or course of any

other proceeding authorized by law and reviewable pursuant to writ of mandate.

The litigation privilege is

absolute. It applies regardless of

malice and bars all tort causes of action except malicious prosecution. (Kenne v. Stennis (2014) 230

Cal.App.4th 953, 964–965 (Kenne).) The privilege is sufficiently broad to

encompass even the presentation of knowingly false evidence. (Seltzer v. Barnes (2010) 182

Cal.App.4th 953, 969–970.) As the

California Supreme Court explained in *Silberg v. Anderson* (1990) 50

Cal.3d 205, 213 (*Silberg*), the privilege is intended “to assure utmost

freedom of communication between citizens and public authorities whose

responsibility is to investigate and remedy wrongdoing.”

As discussed above, the Court has

already concluded that Defendant's statements were made during an official

proceeding authorized by law for purposes of the first prong of the anti-SLAPP

analysis. That conclusion is also

consistent with California courts, which have consistently held that complaints

made to school authorities regarding a teacher's conduct are communications

made in an official proceeding authorized by law and are therefore protected by

the litigation privilege. (*Martin v.*

Kearney (1975) 51 Cal.App.3d 309, 311–313 [parents' complaints to a school

principal regarding a teacher's conduct were absolutely privileged]; *Brody*

v. Montalbano (1978) 87 Cal.App.3d 725, 732–734 [communications to a school board seeking action against a school employee were privileged even though no formal proceeding resulted]; Lee v. Fick (2005) 135 Cal.App.4th 89, 96–99 [complaints to school authorities concerning a teacher's performance are privileged even though they do not expressly request an investigation].)

Picton v. Anderson Union High

School Dist. (1996) 50 Cal.App.4th 726 (Picton) further illustrates the extent of the privilege where those communications become part of the teacher credentialing process. There, a former teacher brought a defamation action against a school district after the district submitted documents and testimony to the California Commission on Teacher Credentialing and its Committee of Credentials concerning allegations of professional misconduct made by several students. The Court of Appeal held that the school district's communications were absolutely privileged under Civil Code section 47, subdivision (b), because they were made in connection with an official proceeding authorized by law. (Id. at 736–740.) The court explained that the Committee of Credentials is a quasi-judicial administrative body because it is vested with discretion to investigate allegations of misconduct, consider evidentiary facts, conduct hearings, apply legal standards to the facts ascertained, and make recommendations affecting a teacher's credential and professional livelihood. (Id. at 737–739.) Because the communications were made by participants authorized by law in furtherance of those proceedings and bore a logical relation to the issues before the Committee, they were absolutely privileged and could not support a defamation action. (Id. at 739–740.)

Here, Plaintiff alleges that

Defendant made the challenged statements during interviews conducted by Downey Unified School District as part of the District's investigation into allegations of professional misconduct against Plaintiff. (Complaint, ¶ 13.) More importantly, Plaintiff argues that the defamation claim is timely because Defendant's statements were later incorporated into the District's investigative findings and transmitted to the California Commission on Teacher Credentialing, culminating in the Commission's October 24, 2025 Notice of Committee Recommendation. (Opp., pp. 12–13; Ferrer Decl., ¶ 24, Ex. D.) According to Plaintiff, those subsequent communications constitute a republication sufficient to avoid the statute of limitations under Shively. Plaintiff further argues that Defendant has not established that every subsequent publication or republication is absolutely privileged. (Opp., pp.

11–12.)

The Court is not persuaded. Plaintiff's republication theory is ultimately insufficient to establish a probability of prevailing. Plaintiff relies on the District's transmission of Defendant's statements to the Commission to invoke the republication rule and avoid the statute of limitations. Yet, under *Picton*, those are precisely the type of communications that are absolutely privileged under Civil Code section 47, subdivision (b). Thus, even assuming the subsequent transmission of Defendant's statements constitutes a republication for purposes of the statute of limitations, Plaintiff's own theory establishes that the alleged republication occurred in connection with a quasi-judicial administrative proceeding protected by the litigation privilege.

Moreover, because the litigation privilege is absolute, it applies regardless of malice or the alleged falsity of the statements and bars all tort causes of action other than malicious prosecution. (*Silberg*, *supra*, 50 Cal.3d at 215–216; *Kenne*, *supra*, 230 Cal.App.4th at 964–965.)

The Court finds that Plaintiff has failed to establish the minimal merit necessary to overcome Defendant's assertion of the litigation privilege.

Accordingly, the Court GRANTS Defendant's special motion as to the first cause of action of Plaintiff's Complaint.

Second,
Third, and Fourth Causes of Action

The Court likewise concludes that Plaintiff has failed to establish a probability of prevailing on the Second, Third, and Fourth Causes of Action because, unlike the defamation claim, those claims are not preserved by the republication rule. *Shively* addresses only the accrual of defamation claims and recognizes that a republication may give rise to a new cause of action for libel or slander. (*Shively*, *supra*, 31 Cal.4th at 1242–1243.) Plaintiff cites no authority extending the republication rule to claims for intentional infliction of emotional distress or negligent infliction of emotional distress. Likewise, civil conspiracy is not an independent tort but rather a theory of liability that depends upon the

underlying wrongful conduct. (Wyatt v. Union Mortgage Co. (1979) 24 Cal.3d 773, 784, fn. 2; Kenworthy v. Brown (1967) 248 Cal.App.2d 298, 301.) Accordingly, the applicable statute of limitations for the conspiracy claim is determined by the underlying tort.

Plaintiff's statute of limitations argument is directed solely to the defamation claim. Plaintiff does not address Defendant's contention that the Second, Third, and Fourth Causes of Action are governed by the two-year limitations period under Code of Civil Procedure section 335.1. Here, those causes of action are predicated on the same allegedly defamatory statements Defendant made during the September 18, 2023 District interview, and the Complaint identifies no subsequent independent tortious conduct or overt act by Defendant giving rise to those claims.

Accordingly, the Court GRANTS Defendant's special motion as the Second, Third, and Fourth causes of action of Plaintiff's Complaint.

Attorney's Fees

Defendant seeks attorneys' fees against Plaintiff pursuant to Code of Civil Procedure section 425.16(c). Section 425.16, subdivision (c)(1) provides that a prevailing defendant on a special motion to strike shall be entitled to recover attorney's fees and costs.

Here, Defendant is entitled to attorney fees and costs. But Defendant states that she will file a noticed motion to recover if she should prevail on her Anti-SLAPP motion. (Notice p. 6.)

"[A] defendant who prevails on an anti-SLAPP motion has three avenues by which to seek prejudgment attorney's fees relating to the filing of the anti-SLAPP motion: (1) in the anti-SLAPP motion itself; (2) by a subsequent noticed motion; or (3) as part of a memorandum of costs." (Briggs v. Elliott (2023) 92 Cal.App.5th 683, 692.)

Thus, Defendant may seek attorney fees and costs by a subsequent noticed motion if she wishes.

Conclusion

Based on the foregoing, Defendant Roxana Hernandez's special motion to strike pursuant to Code of Civil Procedure section 425.16 is GRANTED as to all causes of action asserted against her in Plaintiff David Ferrer's Complaint.